

Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965

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State of Tamilnadu- Act

Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965

TAMILNADU

India

Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965

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Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965

Published vide Notification No. G. O. P. No. 346, Revenue, Dated The 10th February 1965 - S.R.O. No. A-163 of 1965

G. O. P. No. 346, Revenue, Dated The 10th February 1965 - S.R.O. No. A-163 of 1965. - In exercise of the powers conferred by section 73 of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

), the Governor of Tamil Nadu here by makes the following rules:-

1.

Short title.

- These Rules may be called the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965.

2.

Definitions.

- In these Rules, unless the context otherwise requires,-

(a)

"Form" means a Form appended to these rules;

(c)

"Former irrigation work" in respect of a land means the irrigation work from which the land could be irrigated, before facilities for its irrigation from a Government irrigation work became available;

(d)

"Government irrigation work" in respect of a land means the irrigation work (belonging to, constructed, or maintained by, or on behalf of, the Government) under which the land has been registered as wet at the settlement;

(e)

"Section" means a section of the Act;

(f)

"Settlement dry assessment" in respect of a land means the dry assessment appropriate to the soil classification assigned to the land at the settlement;

(g)

"Settlement manavari assessment" in respect of a land means the mana-vari assessment appropriate to the soil classification assigned to the land at the settlement;

(h)

"Settlement notification" in relation to a land means the settlement notification published under sub-section (1) of section 20 in respect of the inam estate or part thereof, in which the land is situated;

(i)

"Settlement wet assessment" in respect of a land means the assessment under the settlement notification appropriate to the soil classification assigned to the land at the settlement, and the classification of the irrigation work being that of the former irrigation work as determined under sub-rule (4) of rule 20.

3.

Recognition as landholder for purposes of Explanation II to section 2(8).

(1)

Where a new inam estate or part thereof has been transferred, by way of lease, usufructuary mortgage or otherwise-

(a)

if the transferee is in possession and the transfer is disputed by the owner, the Settlement Officer shall hold an enquiry and if he finds that the transfer is *prima facie* true and valid and confers right to possession, he shall recognise the transferee as the landholder.

(b)

If the transferee is not in possession and the transfer is disputed by the owner, the Settlement Officer shall, held an enquiry and if the finds that the transfer is *prima facie* true and valid and confers right to possession, he shall recognise as the landowner.

(2)

In cases of dispute between persons claiming against each other, the ownership of a new inam estate or part thereof of any smaller interest therein, conferring a right to possession, the Settlement Officer shall hold an enquiry and recognize, as landholder, the claimant who, in his opinion, is *prima facie* entitled to the possession of the new inam estate or part thereof in questions.

(3)

Where there are two or more landholders entitled to a new inam estate or part thereof-

(a)

if all the landholders are members of a joint Hindu family, the managing member of the family shall be recognised as the landholder;

(b)

if anyone of the landholders has, by all the rest, been appointed, in writing, or admitted before the Settlement Officer, to

be the managing landholder, the Settlement Officer shall recognize as the landholder;

(c)

in other cases, the landholder who is entitled to the largest share of the income shall be recognized as the landholder but, if there is none among the landholders who is entitled to a larger share of the income than any one or the rest, the Settlement Officer shall hold an enquiry and recognise that one among them who, in his opinion, is fit to be the landholder, as the landholder.

(4)

The Settlement Officer's enquiry under this rule shall be summary.

4.

Procedure for taking possession of an inam estate.

(1)

The officer authorised by the Government to take possession of an inam estate on their behalf under clause (d) of section 3 shall take charge of only such of the accounts, registers, pattas, muchilikas, maps, plans and other documents relating to the inam estate as are, in his opinion, necessary for the administration of the inam estate. He shall prepare a detailed inventory of those documents in the presence of the landholder or any person deputed, in writing, by the landholder in that behalf, and give a copy of such inventory to the landholder or his deputy. Certified copies of the documents shall be made and given to the landholder, if so required by him.

(2)

Where the officer referred to in sub-rule (1) has reason to believe that there are other documents in the possession or custody of the landholder and is of opinion that such documents are essential for the administration of the inam estate, he may summon the landholder to produce all documents and the landholder shall be bound to produce them.

5.

Procedure for taking possession of land in an inam estate.

(1)

Before taking possession of any land in an inam estate under the proviso to clause (d) of section 3, the Manager of the inam estate shall examine whether any person, on the notified date, is personally cultivating that land or not:

Provided that if the Manager is of the status of Revenue Inspector, the examination referred to in this rule shall be made by the Tahsildar or Deputy Tahsildar, in whose jurisdiction the inam estate is situated.

(2)

If the Manager finds that the occupant of a land on the date on which the inam estate was notified under sub-section (4) of section 1 is personally cultivating that land, he shall tentatively allow such occupation to continue, subject to the payment of assessment on the extent occupied as determined under section 21 and subject to the condition that the payment of such assessment shall not confer any right of occupancy.

Explanation. - For the purpose of this rule, occupation for a part of a fasli year shall be deemed to be occupation for the whole of a fasli year.

(3)

(a)

If the Manager finds that the occupant of a land, on the notified date, is not personally cultivating that land and considers that the occupation is objectionable, he shall cause a notice in Form No. 1 to be served on him calling upon them to show cause why he should not be dispossessed of the land.

(b)

The Manager shall examine the representations, if any, made on the date fixed for the enquiry and, after such further enquiry as he may consider necessary, shall pass orders to cause a notice in Form No. 2 to be served on the occupant, if he decided that the occupant should be dispossessed.

(c)

On the expiry of the time allowed for filing appeal or revision petition or if an appeal or revision petition has been filed, after the disposal of such appeal or revision petition, and if the decision in the appeal or revision is that the occupant should be dispossessed as he is not personally cultivating that land, an officer not lower in rank than a Revenue Inspector duly authorised in this behalf, may formally enter upon the land in question and take possession of it and record certificate of the village officers and of at least one ryot of the village that the land has been taken possession of by the Government.

(4)

If the occupant of a land, on the notified date, is not personally cultivating that land, but the occupation is considered not objectionable, the occupation may be allowed, subject to the payment by the occupant of the assessment on the land under section 21, until the ryotwari settlement of the land is effected under section 20 or until the land is required by the Government for any purpose which ever is earlier. The payment of such assessment shall not confer on the occupant any occupancy right. Every decision of the Manager in. this regard shall be communicated to the occupant concerned in Form No. 3.

6.

Period within which appeal against an order under proviso to section 3(d) can be filed.

- Every appeal against an order under the proviso to clause (d) of section 3 deciding the question whether a ryot or a landholder is to be dispossessed or not, shall be preferred within thirty days from the date of communication of such order or within such further time as the appellate authority may, in its discretion, allow.

7.

Revision petition to the Director of Settlement.

(1)

Any person aggrieved by any of the orders, acts or proceedings of a Settlement Officer, other than those in respect of which an appeal lies to the Tribunal, may prefer a revision petition to the Director of Settlements.

(2)

Every such petition shall be preferred within thirty days from the date of communication of the order or proceedings of the Settlement Officer:

Provided that the Director of Settlements may admit a petition preferred after the period aforesaid, if he is satisfied that the petitioner had sufficient cause for not preferring the petition within the said period.

8.

Revision petition to the [Board of Revenue]

[The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980) Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.]

(1)

Any person aggrieved by any of the orders, acts, or proceedings of the Director of Settlements or of a District Collector including those passed, done or taken in the exercise of revisional powers, may prefer a revision petition to the Board of Revenue.

(2)

Every such petition shall be preferred within sixty days from the date of communication of the order or proceedings of the Director of Settlements or of a District Collector, as the case may be:

Provided that the Board of Revenue may admit a petition preferred after the expiry of the period aforesaid, if it is satisfied that the petitioner had sufficient reason for not preferring the petition within the said period.

9.

Enquiry into claims under section 9,10,11 or 14.

(1)

Every application for grant of ryotwari patta in respect of any land under section 9, 10, 11 or 14 shall be in Form No. 4 and shall be either presented in person or sent by registered post to the Settlement Officer within six months from the notified date, or from the 23rd November 1966, whichever is later.

(2)

Every such application shall be signed and verified by the applicant and restricted to lands in a single village.

(3)

If, in respect of any land, no person has applied under sub-rule (1) or where an urgent enquiry within the period specified in sub-rule (6) is necessary in the public interest, the Settlement Officer shall proceed to enquire into the nature and history of the land suo motu and determine if any person is prima facie entitled to a ryotwari patta in respect of that land.

(4)

The Settlement Officer shall then fix a date for the enquiry and shall cause a notice in Form No. 5 to be served on each landholder, ryot, cultivator or service holder who has applied for ryotwari patta or who, in the opinion of the Settlement

Officer, is prima facie entitled to a ryotwari patta, to produce any record or make any representation, which he may wish to make at the enquiry. A copy of the notice shall also be sent, to the Manager of the inam estate.

(5)

The Settlement Officer shall also publish a notice in Form No. 6 requiring any person, who has any objection to any of the proposals to grant ryotwari patta, to file before him a statement of his objections, within a week from the date of the notice and also requesting all interested persons to be present at the enquiry either in person or through an authorised representative and make their representations. Copies of the notice shall be affixed on the notice boards of the offices of the Settlement Officer and of the Assistant Settlement Officer concerned.

(6)

The date of the enquiry shall not be earlier than fifteen days from the date of the publication of the notice referred to in sub-rule (5).

(7)

The enquiry shall be summary. The Settlement Officer shall hear the parties and afford them a reasonable opportunity for adducing any oral or documentary evidence.

(8)

The decision of the Settlement Officer shall be published in Form No. 7. A copy of the decision shall be given to the party concerned in person or sent to him by registered post. A copy of the decision shall also be sent to the Manager of the inam estate and to the Director of Settlements.

10.

Appeal to the Tribunal.

(1)

On receipt of an appeal preferred under subsection (2) of section 12, the Tribunal shall cause a notice in Form No. 8 to be published requiring all persons who have applied to the Settlement Officer under section 9, 10 or 11 or filed a statement before the Settlement Officer in the course of the enquiry under such section, to appear before it.

(2)

A copy of the notice shall be served on the applicant, the Manager of the inam estate and every other person affected by the appeal, by sending the notice to the individual concerned by registered post.

(3)

A copy of the final order of the Tribunal shall be communicated to the appellant, the respondents and the Manager of the inam estate.

11.

Eviction of occupant of land not entitled to ryotwari patta in respect of it consequent on decision under section 12 or 14.

- In cases in which the Settlement Officer, the Tribunal, the Special Appellate Tribunal, the Director of Settlements or the [Board of Revenue]

[The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980) Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.]

decides that no one is actually entitled to ryotwari patta in respect of a land, the Manager shall serve on the occupant of any such land a notice in Form No. 9. The Manager shall also take such further steps as are necessary to evict him. Any such eviction shall be carried out in accordance with the provisions of clause (c) of sub-rule (3) of rule 5:

Provided that if the occupation is unobjectionable and if the occupant states, in writing, that he accepts the decision of the Settlement Officer, the Tribunal, the Special Appellate Tribunal, the Director of Settlements or the [Board of Revenue]

[The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980) Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.]

, as the case may be, that he is not entitled to ryotwari patta in respect of the land in his occupation and that he will surrender possession of it to the Government if it is not assigned to him under the darkhast rules, his petition being treated as his darkhast application, he need not be evicted. The Manager may allow the occupation in such cases to continue, subject to the payment of assessment on the land as determined under section 21, until orders are passed on the darkhast application or the land is required by the Government for any purpose, whichever is earlier.

12.

Liability of unauthorised occupant of land to be proceeded against under any law.

- Nothing contained in these rules shall be construed as exempting any person unauthorisedly occupying land from liability to be proceeded against, under any law for the time being in force.

13.

Assessment of value of buildings.

- The value of a building, for the purposes of sub-section (3) of section 15, shall be assessed in the following manner:-

(1)

Where the building has been rented. - (a) The value of the building shall be assessed by capitalising its net annual rent at a certain number of years' purchase as specified below:-

(b)

The net annual rent of the building shall be ascertained by deducting, from the gross annual rent for the building,-

(i)

the taxes and land revenue charges payable annually in respect of the building; and

(ii)

one month's rent towards the annual cost of ordinary repairs to the building.

(c)

If the superstructure is in a reasonably good condition, the number of years' purchase at which the net annual rent shall be capitalised at such smaller of years' purchase, as the Tribunal may deem fit, regard being had, in each case, to the age and condition of the superstructure and any other relevant factor.

(d)

A building which has not been rented for a period of twelve months prior to the date of assessment of its value by the Tribunal or which, in the opinion of the Tribunal, has been rented only for a nominal rent, shall be dealt with under clause

(2).

(2)

Where the building has not been rented. - (a) The value of the building shall be assessed on the basis of sales of similar buildings in the neighbourhood.

(b)

If there has been no sale of any similar building in the neighbourhood, the Tribunal shall first enquire into the original cost of construction of the superstructure, have regard to the age and condition of the superstructure, and any other relevant factor, make due allowance for depreciation and then ascertain the value of superstructure. For this purpose, the Tribunal shall not only make its own enquiries, but shall also supplement them by obtaining an estimate or original costs of construction of the superstructure from the Public Works Department. Such estimate shall be taken only as a guide and not as the sole determining factor in arriving at the value of the superstructure. To the value of the superstructure so ascertained, the Tribunal shall add the value of the land on which the superstructure stands, on the basis of the value of similar land in the neighbourhood.

14.

Procedure to be followed in cases falling under section 15,16,17 or 18.

- The provisions of rule 11 shall apply mutatis mutandis to cases, in which the occupant of any land is not entitled, under sections 15,16,17 or 18, as the case may be, to remain in occupation of the land.

15.

Landholder to furnish accounts of arrears of rent.

- Every landholder of an existing inam estate in respect of which the rate of rent has been determined before the notified date under the Tamil Nadu Estates Land (Reduction of Rent) Act, 1947 (Tamil Nadu Act XXX of 1947) shall, not later than one month from the notified date, submit to the Manager of the inam estate, correct and true accounts of the arrears of rent, which were outstanding in the notified date in respect of every holding on the inam estate. [As amended by G.O. Ms. No. 923, Revenue, dated the 19th May 1967],

16.

Procedure to be adopted if the landholder of an existing inam estate does not furnish accounts regarding arrears of rent.

- If the landholder of an existing inam estate in respect of which the rate of rent has been determined before the notified date under the Tamil Nadu Estates Land (Reduction of Rent) Act, 1947 (Tamil Nadu Act XXX of 1947) does not furnish the particulars, as required in rule 15, the Manager of the inam estate shall serve a notice on him to the effect that if he does not furnish the particulars within a specified time, it will be assumed that there are no arrears of rent to be collected

by the Government on his behalf. In the following cases, namely:-

(a)

where it has been so assumed that there are no arrears of rent to be collected; and

(b)

where the landholder pleads that he has no accounts or that he has not kept any accurate accounts if it is found that an excess payment has been made by a ryot in respect of his holding for any fasli year, the land revenue as determined under clause (a) of section 21 in respect of that holding shall, for the purpose of adjusting the excess payment, be taken to be the rent due on that holding for that fasli year. The Manager shall also, in every case coming under clause (b) above, if he is satisfied that the landholder's plea is genuine, adopt the said land revenue in respect of any holding to be the rent to be collected for that holding in respect of any fasli year prior to the notified date. [As amended by G. O. Ms. No. 923, Revenue, dated the 19th May 1967.]

17.

Determination of rent in cases falling under section 21(a)(ii).

- In cases falling under sub-clause (ii) of clause (a) of section 21 where the rent, which would have been payable to the landholder in respect of the fasli year in which the inam estate is notified is in kind or is a share of the produce, the quantity of such rent shall be determined by the District Collector or any officer authorized by him, on local enquiries and with reference to village accounts.

18.

Commutation of rent into cash.

- The rent so determined shall be commuted into cash in accordance with the prices notified by the [Board of Revenue] [The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980) Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.] and prevailing on the date on which the land revenue became payable:

Provided that, where no such price has been notified, the rent shall be commuted in accordance with the price, which the District Collector may, after making such local enquiry as he deems fit, fix as the price prevailing on the date on which the land revenue became payable.

19.

Evidence of payment of rent to landholder.

- Every payment of rent made by a ryot to the landholder, before the notified date in respect of the fasli year in which the inam estate is notified shall, for the purpose of the first proviso to clause (a) of section 21, be authenticated as hereunder:-

(a)

In cases where the ryot produces receipt in token of payment of rent to the landholder, such receipt should have been signed by the landholder or his duly authorized agent on his behalf.

(b)

In cases, where he does not produce such a receipt, he shall produce a certificate signed by the landholder or his duly authorized agent on his behalf in token of the payment of rent to the landholder.

20.

Determination of appropriate assessment.

(1)

The following provisions shall govern the determination of the appropriate assessment, under the Explanation to section 26, in respect of any land in an inam estate, which has been registered, in pursuance of a settlement effected under section 20, as wet, under an irrigation work belonging to, constructed or maintained by, or on behalf of the Government, and which was liable to pay any water-cess under any law governing the levy of such cess in the State of Tamil Nadu for irrigation from the said work before the settlement.

(2)

If in respect of a land, there was no former irrigation work, the appropriate assessment shall be the settlement manavari assessment or the settlement dry assessment, according as, in the absence of facilities for irrigation from the Government irrigation work, the land would have been registered as manavari or as dry, at the settlement.

(3)

In respect of a land, which could be cultivated with wet crops in normal years with water taken from the former irrigation

work and which was liable to pay any water-cess to the Government after facilities for irrigation from the Government irrigation work became available, the appropriate assessment shall be the settlement wet assessment.

(4)

In determining the appropriate assessment under these rules, the Assistant Settlement Officer shall adopt the following procedure, namely:-

(a)

(i)

He shall first determine provisionally the appropriate assessment of the land after considering all the relevant information available in Government records and in any landholder's accounts handed over to the Government under clause (d) of section 3.

(ii)

In cases falling under sub-rule (c), the Assistant Settlement Officer shall, as a preliminary to the determination of the appropriate assessment, determine the classification, which would be assigned to the former irrigation work, if it were classified in accordance with the settlement notification.

Explanation. - For the purpose of this rule "Government records" shall include block survey registers prepared at the time of the block survey of the district, in which the land is situated, the record of rights register of the village, in which the land is situated, the irrigation memoir attached to the record of rights register or relating to the tract, in which the land is situated, and settlement and re-settlement registers of ryotwari villages in the neighbourhood.

(b)

The Assistant Settlement Officer shall record a brief order indicating the basis on which he has determined the provisional rate or assessment of each land and the classification of each former irrigation work and specifying the record relied upon by him.

(c)

The Assistant Settlement Officer shall, then, cause to be published in the village in which the land is situated, a copy of the said order together with a notice in Form No. 10 requiring all persons interested in the land to appear before him and make any representation they may have, in regard to the provisional assessment.

(d)

The notice referred to in clause (c) shall specify the date on which the Assistant Settlement Officer proposes to hear the parties and shall be published and a copy thereof shall also be affixed on the notice board of the office of the Assistant Settlement Officer.

(e)

On the day fixed for the finalisation for the appropriate assessment, the Assistant Settlement Officer shall, after hearing the parties present and considering the evidence produced, finalise the said assessment.

(f)

The Assistant Settlement Officer shall, then, record his final order, summarising the representations, if any, made to him, and indicating the basis on which his final determination has been made and specifying the evidence relied upon by him.

(g)

The order of the Assistant Settlement Officer recorded under sub-rule (f) shall be published in the village.

21.

Computation of net miscellaneous revenue.

- For the purpose of determining the net annual miscellaneous revenue referred to in section 27, the following deductions shall be made from the gross annual miscellaneous revenue:-

(1)

In the case of miscellaneous revenue derived from sources other than forests, fisheries and ferries, 10 per cent of such miscellaneous revenue.

(2)

In the case of miscellaneous revenue derived from forests-

(a)

when the forests are under the control of the Manager of the inam estate alone and not administered by the Forest department-

(i)

ten per cent, of such revenue, if no special staffs employed in connection with the management of the forest;

(ii)

the actual expenditure incurred on account of the special staff, if any such staff is employed for the management of the forest or 15 per cent of the revenue derived from the forest, whichever is less;

(b)

when the forests are administered by the Forest department, the actual expenditure incurred on the administration and maintenance of the forests plus 5 per cent, of the same as centage charges towards the cost of supervision of the administration by superior staffer 15 per cent of the revenue derived from the forest, whichever is less.

(3)

In respect of forests in inam estates which have been taken over and transferred to the control of the Forest department, the Chief Conservator of Forests, [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

, shall arrange to keep accounts of income and expenditure in respect of each notified inam estate separately, for such period as is referred to in section 27, excepting that in cases where for any part of the relevant fasli, the administration of the forest vested in the Manager of the inam estate, the Conservator of Forests may adopt the accounts maintained by the Manager up to the date of such transfer. If the forest area in any such inam estate is not administered as a separate unit of the Forest department, the income and expenditure shall be apportioned as correctly as possible on the basis of the available data. As soon as possible after the close of each year, the Chief Conservator of Forests shall furnish to the Director of Settlements, [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

, the figures of actual or apportioned gross revenue expenditure, and net income in respect of such inam estate.

(4)

The provisions of sub-rules (2) and (3) shall apply mutatis mutandis to miscellaneous revenue derived from fisheries and ferries.

Explanation. - For the purpose of this sub-rule, the function of the Chief Conservator of Forests shall be discharged by the Director of Fisheries in respect of Fisheries and by the Chief Engineer (Highways) or the executive authority of the local body, in respect of ferries according as the ferry is administered by the Highways department or by a local body.

22.

Manner in which quantity of anything deliverable in kind annually by the landholder of other inam estate should be ascertained.

- The quantity of anything deliverable in kind annually to the landholder of an inam estate by the landholder of some other inam estate, in addition to the jodi, kattubadi or other amount of a like nature payable in cash, shall be ascertained with reference to custom or documentary evidence available. For the purposes of commutation of the value of such quantity into cash, the taluk price tables (wholesale prices) for the time of the year, when payment was normally due or, if that was not specified, for the time of the year when the jodi, kattubadi or other amount of a like nature was payable, shall be adopted.

23.

Procedure to calculate tasdik allowance to institution and compensation and interim payment to service-holder.

- The following procedure shall be adopted for calculating the tasdik allowance payable under clause (b) of sub-section (1) of section 32 to any religious, educational or charitable institution and the compensation and interim payment payable under sub-section (2) of section 33, to any service-holder, in respect of a part of an inam estate held by such institution or service holder, immediately before the notified date.

(1)

(a)

Where the part of the inam estate held by a religious, educational, or charitable institution or a service-holder is distinguishable separately on ground by metes and bounds, the allowance payable shall be the aggregate of the sums specified in section 25 in respect of that part less the deduction specified in sections 26 and 28 relating to that part.

(b)

The deduction on account of the maintenance of irrigation works referred to in sub-section (2) of section 26 shall be made from the portion of the gross annual ryotwari demand relating to the part of the inam estate held by the institution or service-holder. No deduction shall be made, if the irrigation works do not actually serve such part.

(c)

Where the source specified in clause (b) of section 3 (namely, waste, lands, pasture lands, forests, mines and minerals, quarries, rivers and streams, tanks and irrigation sources, fisheries and ferries), from which miscellaneous revenue is derived, are not held separately by an institution or service holder and any other landholder or landholders, the average net annual miscellaneous revenue calculated for the inam estate as a whole as prescribed in section 27, shall be apportioned between the institution or service-holder and the other landholder or landholders, in proportion to the shares held by them.

(d)

The deductions specified in section 28 shall be apportioned between the institution or service-holder and other landholder or landholders, in the proportion in which the obligation to pay the amounts specified in that section, were shared between them by contract, custom or usage.

(2)

(a)

Where the part of the inam estate held by a religious, educational or charitable institution or a service-holder is not distinguishable separately on ground by metes and bounds, and the total income from the inam estate is shared between the institution or service-holder and the other landholder or landholders, the tasdik allowance payable to the institution or the compensation and the interim payment payable to the service-holder shall bear to the total basic annual sum the same proportion as the share or the income derived by the institution or service-holder bears to the total income from the inam estate.

(b)

In case falling under clause (a), the share held by the institution or service-holder shall be determined with reference to the inam title deed or other records, as may be available and, where no such records are available, with reference to custom and usage.

(3)

The balance of the total basic annual sum, after deducting the portion to be ascribed to the institution or service-holder as prescribed above, shall be ascribed to the remaining part of the inam estate.

24.

Application for a copy of the data when to be made.

- An application for a copy of the data, on the basis of which the Director of Settlements proposes to determine the basic annual sum, shall be made by the landholder or other person interested within two months from such date as may be notified by the Director of Settlements in this behalf.

25.

Form of payment of compensation.

- The compensation payable in respect of every inam estate shall be paid in full either in cash or in bonds or partly in cash and partly in bonds issued by the Government.

26.

Payment of compensation in instalments.

- In the case of an inam estate not held immediately before the notified date by a religious, educational or charitable institution-

(a)

if the basic annual sum in respect of the inam estate does not exceed Rs. 3,000, the compensation shall be paid in one lump sum;

(b)

if the basic annual sum in respect of the inam estate exceeds Rs. 3,000, but does not exceed Rs. 50,000, the compensation shall be paid in equal annual instalments not exceeding three in number; and

(c)

if the basic annual sum in respect of the inam estate exceeds Rs. 50,000, the compensation shall be paid in equal annual instalments not exceeding five in number.

27.

Period within which compensation need be paid.

- The compensation in respect of an inam estate shall be paid not later than nine months from the date on which the

settlement operations in respect of the inam estate are completed or where the date is earlier than the date of expiry of the period of fasli years referred to in section 27, not later than nine months from the latter date:

Provided that where the amount of the total compensation stands altered as a result of any order under section 34, or otherwise after the payment or payments referred to above, have been made the amount or the amounts of any deficiency in the payment or payments already made may be paid at any time, and as soon as may be after the said alteration, and the amount or amounts of any excess in the payment or payments already made by way of deposit under sections 36 and 45 may withdrawn at any time and as soon as may be after the said alteration.

28.

Apportionment of compensation and interim payment.

(1)

As soon as may be after any amount is deposited under section 36 and 45 in the office of the Tribunal, the Director of Settlements shall publish the fact of such deposit in the [Fort St. George Gazette]

[Now, the Tamil Nadu Government Gazette.]

with particulars of the amount so deposited, the date of deposit and the inam estate to which it relates.

(2)

As soon as may be after such publication is made, the Tribunal shall publish on its notice board, both in English and Tamil, a copy of the notification as published in the [Fort St. George Gazette.]

[Now, the Tamil Nadu Government Gazette.]

(3)

The fact of deposit shall also be published on the notice board of the taluk office of the taluk, in which the inam estate is situated and also in the headquarters village of the inam estate by affixing a copy of the notice in the village chavadi or in some other conspicuous place in the village and also by beat of tomtom.

(4)

If there are persons, whose claims to any amount deposited previously in respect of the same inam estate, have been recognised by the Tribunal, it shall give notice to all such persons, and the expenses for issue of such notice shall be distributed among all the claimants who are before the Tribunal, within the time specified in section 37.

(5)

The Tribunal shall pass no orders regarding the apportionment of any amount so deposited with it until after the expiry of one month from the date of publication of the notification in respect of the deposit on its notice board.

(6)

No claim shall be allowed by the Tribunal except a claim petition made to it.

(7)

The claimants and other persons interested may appear before the Tribunal in person or through pleaders duly authorised by them in this behalf.

(8)

In the case of an inam estate, not being an impartible inam estate governed by section 40, the value of the respective interests in the inam estate, of the principal landholder and the other persons mentioned in section 39(1) shall be ascertained in accordance with the following provisions.

(9)

In the case of any such mam estate, in which there are darmila inams, the Tribunal shall first determine the compensation payable to each darmila inam-dar on the one hand and the principal landholder or landholders in the inam estate of the other and then proceed in accordance with sub-rule (11) in respect of the compensation payable to the principal landholders.

(10)

Sub-rules (11) and (12) as applicable to partible inam estates shall mutatis mutandis apply to the compensation payable in respect of each darmila inamdar.

(11)

(a)

In the case of a partible inam estate, which immediately before the notified date, was the property of a joint Hindu family, the Tribunal shall determine the aggregate compensation payable to all the following persons considered as a single group:-

(i)

the members of the joint Hindu family who, immediately before the notified date were entitled to a share in the inam estate (who are hereinafter called "sharers"); and

(ii)

other persons who, immediately before the notified date were entitled to maintenance out of the inam estate and its income either under the Hindu law or under any decree or order of a Court, award or other instrument in writing or contract or family arrangement, which is binding on the principal landholder (who are hereinafter called "maintenance holders"):

Provided that no such maintenance holder shall be entitled to any portion of the aggregate compensation aforesaid if, before the notified date, his claim for maintenance, or the claim of his branch of family for maintenance had been settled or discharged in full.

(b)

The Tribunal shall next determine which creditors, if any, are lawfully entitled to have their debts paid from and out of the assets of the inam estate and the amount, to which each of them is entitled; and only the remainder of the aggregate compensation shall be divisible among the shares and maintenance-holders as hereinafter provided.

(c)

(i)

The Tribunal shall, in determining the amount of the compensation payable to the maintenance-holders and apportioning the same among them, have regard, as far as possible, to the following considerations, namely:-

(1)

the compensation payable in respect of the inam estate;

(2)

the number of persons to be maintained out of the inam estate;

(3)

the nearness of relationship of the person claiming to be maintained;

(4)

the other sources of income of the claimant;

(5)

the circumstance of the family of the claimant.

(ii)

For the purpose of securing that the amount of compensation payable to the maintenance-holders is apportioned among them on an equitable basis, the Tribunal shall have power, wherever necessary, to re-open any arrangement already made in respect of maintenance whether by a decree or order of a Court, award or other instrument in writing or contract or family arrangement.

(d)

The balance of the aggregate compensation shall, subject to the provisions of section 41, be divided among the shares, as if they owned such balance as a joint Hindu family, and a partition thereof had been effected among them on the notified date.

(12)

(a)

In the case of a partible inam estate other than that specified in sub-rule (11) or an impartible inam estate not governed by section 40, the Tribunal shall determine the aggregate compensation payable to all the following persons considered as a single group, namely:-

(i)

the persons who, immediately before the notified date, owned the inam estate (who are hereinafter in this rule called "owners").

(ii)

other persons who, immediately before the notified date, were entitled to maintenance out of the estate and its income either under the law governing the parties or under any decree or order of a Court, award or other instrument in writing or contract or family arrangement, which is binding on the owners (such other persons being hereinafter in this rule called "maintenance-holders"):

Provided that no such maintenance-holder shall be entitled to any portion of the aggregate compensation aforesaid, if, before the notified date, his claim for maintenance, or the claim of his branch of the family for maintenance had been settled or discharged in full.

(b)

The Tribunal shall next determine which creditors, if any, are lawfully entitled to have the debts paid from and out of the assets of the inam estate and the amount, to which each of them is so entitled; and only the remainder of the aggregate compensation shall be divisible among the owners and maintenance-holders as hereinafter provided.

(c)

(i)

The Tribunal shall, in determining the amount of compensation payable to the maintenance-holders and apportioning the same among them, have regard, as far as possible, to the following considerations, namely:-

(1)

the compensation payable in respect of the inam estate;

(2)

the number of persons to be maintained out of the inam estate;

(3)

the nearness of relationship of the person claiming to be maintained;

(4)

the other sources of income of the claimant;

(5)

the circumstances of the family of the claimant.

(ii)

For the purpose of securing that the amount of compensation payable to the maintenance-holders, is apportioned among them on an equitable basis, the Tribunal shall have power, wherever necessary, to re-open any arrangement already made in respect of maintenance, whether by a decree or order of a Court, award or other instrument in writing or contract or family arrangement.

(d)

The balance of the aggregate compensation shall, subject to the provisions of section 41, be divided among the owners in proportion to the respective interests in the inam estate immediately before the notified date.

(13)

(a)

In the case of an impartible inam estate governed by section 40, in which there are darmila inams, the value of the respective interests in the inam estate of the principal landholder and each of the darmila inamdars shall be ascertained in accordance with the following provisions, namely:-

(b)

The Tribunal shall first determine the amount of compensation payable to each darmila inamdar on the one hand and principal landholder of the inam estate on the other, the proprietor of the inam estate being treated as the principal landholder thereof.

(c)

After the amount of compensation payable to each darmila inamdar and the principal landholder has been determined under sub-clause (b) above, the Tribunal shall-

(i)

in respect of the compensation payable to the principal landholder, apply the provisions contained in sections 40 to 42; and

(ii)

in respect of the compensation payable to each darmila inamdar apply the rules prescribed for partible inam estates.

29.

Payment of tasdik allowance or interim amounts.

- The amount payable to any religious, educational or charitable institution under section 32 or 49 of the Act shall be paid to the trustee, manager or other person in charge of the institution already on the records. Before making the payment, the Collector may, if he thinks it necessary, and shall, if the claim for the management of the institution or the

right to receive payment of the amount on behalf of the institution is in dispute, obtain an indemnity bond from the payee, the disputants being asked to establish their claim in a competent Court of law.

30.

Proposals for additional compensation to institutions to be submitted to Government.

(1)

The Director of Settlements shall submit to the Government proposals for payment to be made under sub-section (2) of section 32 for making good the deficiency referred to in that section to any religious, educational or charitable institution in respect of an inam estate or part thereof, that was held by it immediately before the notified date.

(2)

The trustee, manager or other person in charge of every religious, educational or charitable institution, which held an inam estate or part thereof immediately before the notified date shall, within 90 days from the notified date or such further time as the manager of the inam estate may, in his discretion allow, furnish to the manager of the inam estate a settlement showing the particulars or ryoti lands in the occupation of ryots in the inam estate, for each of the five fasli years referred to in clause (a) of sub-section (2) of section 32 in Form No. 11. He shall also furnish the following particulars for each of the five fasli years, namely:-

(i)

Miscellaneous items of revenue-

(a)

Source of revenue;

(b)

Amount collected under each source.

(ii)

Jodi or like amount, if any, payable to a landholder or some other inam estate.

(iii)

Jodi or like amounts, if any, payable to the Government.

(3)

The manager of the inam estate shall check the particulars including those in Form No. 11 furnished under sub-rule (2) and furnish to the Director of Settlements with the correct data, on the basis of which the latter shall work out the compensation payable under sub-section (2) of section 32. He shall also submit at the same time the particulars and the statement in Form No. 11 received by him under sub-rule (2) to the Director of Settlements.

(4)

For purposes of calculating the compensation amount, the difference between the average net annual income derived by the institution from all sources in the inam estate or part thereof referred to in clause (a) of sub-section (2) of section 32 and the income, which the institution may be expected to receive from the lands, in respect of which it is entitled to a ryotwari patta referred to in clause (b) of sub-section (2) of section 32, shall be taken to be the difference between the following items of income and expenditure in the inam estate or part thereof in the relevant faslis:-

Income

Expenditure

(1) Rent on ryoti lands in the occupation of ryots.

(1) Administrative charges.

(2) Miscellaneous terms of revenue

(2) Cess payable for the whole inam estates or part thereof, as the case may be, by landholder.

(3) Jodi or like amounts, if any, payable to the landholder of some other inam estate.

(4) Jodi or like amounts, if any, payable to the Government.

(5)

For the purpose of sub-rule (4), the administrative charges shall be taken as ten per cent of the income referred to in that sub-rule.

(6)

When the trustee, manager or other person in charge of the institution does not furnish the particulars in accordance with sub-rule (2), the Director of Settlements shall work out the compensation payable to the institution, after causing such local enquiry and scrutiny of records as he may deem fit, through the manager of the inam estate, who shall furnish the information required for this purpose when called for.

31.

Poruppu, etc., payable to darmila inamdar to be taken into account in the calculation of basic annual sum.

- In the calculation of the basic annual sum under section 24, of an inam estate or part thereof falling under section 32, the poruppu or other amount, if any, of a like nature (excluding local cesses and taxes), payable annually by any darmila inamdar to the institution immediately before the notified date shall be added to the sums specified in section 25 for the institution and deducted under section 28 in determining the compensation payable to the darmila grantee:

Provided that the amount deducted shall, in no case, exceed one half of the aggregate of the net amount computed in accordance with section 26 in respect of the darmila portion.

32.

Manner of payment.

(1)

Any sum payable to a religious, educational or charitable institution under sub-section (1) of section 32 as a tasdik allowance, or under sub-section (2) of section 32 to make good the deficiency referred to in that section in respect of any fasli year commencing from the fasli year in which the basic annual sum referred to in sub-section (1) of section 32 is finally determined, shall be paid by deduction from the beriz of the village concerned and in so far as it cannot be so paid, shall be paid in cash to the institution from the sub-treasury of the taluk in which the village is situated.

(2)

The payments referred to in sub-rule (1) shall be, subject to adjustment, as provided in sub-section (2) of section 49 and shall be made before the end of the fasli year, to which they relate.

33.

Investing money received by a religious institution in securities.

- Any sum received by a religious institution under sub-section (5) of section 33 shall be invested by the institution in any one of the securities specified in the Appendix to Chapter IV of Part II of the Civil Rules of Practice and Circular Orders (Volume I).

34.

Procedure in regard to service inams.

- If any service-holder entitled to a ryotwari patta under section 9 in respect of any land desires either to continue to render the service or to get himself discharged from his liability to render the service, he shall exercise his option referred to in sub-section (8) of section 33 in Form No. 12 not later than the expiry of a period of six months from the date on which he was granted ryotwari patta.

35.

Procedure for determining fair rent.

(1)

In determining fair rent for the purpose of sub-section (9) of section 33, the manager of the inam estate or, if the manager is below the rank of a Tahsildar, the Tahsildar of the taluk in which the inam estate is situated, may call upon the landholder or the occupant to furnish the following particulars and such other particulars, as he may consider necessary:-

(a)

Extent of lands of each class such as wet, dry, garden, topes, orchards and those used for non-agricultural purposes;

(b)

Rates of rent or lease amount, as the case may be, levied on each class of land, immediately before the fasli year, in which the inam estate is notified;

(c)

Particulars of cultivation with details of extent, crop-yield and nature of occupation, as the case may be.

(2)

The Manager or the Tahsildar, as the case may be, may also call upon the landholder to produce his accounts

containing the particulars specified in sub-rule (1).

(3)

In the case of lands referred to in paragraph 1 of Schedule II to the Act, the Manager or the Tahsildar, as the case may be, shall, for the purpose of determining fair rent, ascertain the lease amount for a similar land, similarly situated and possessing similar advantages in the neighbourhood.

(4)

Subject to the provisions contained in paragraph 2 of Schedule II to the Act, the Manager or the Tahsildar, as the case may be, shall, for determining the normal gross produce in respect of any land for any specified crop, ascertain the quantity of the produce which would be obtained, if such crop were grown in a year, in which the rainfall and the seasons were of a normal character, on a land of the same class, as the land in question, similarly situated and possessing similar advantages. For the purposes of such determination, the Manager or the Tahsildar, as the case may be, may take into consideration-

(a)

the soil classification of the land and the normal or standard out turn of paddy in the case of wet land and of the dry or irrigated crop in the case of dry unirrigated or irrigated land for the different classes and sorts of soil;

(b)

the Government records containing the season and crop reports and rainfall accounts;

(c)

the accounts of the landholders and occupants, wherever available, for similar lands enjoying similar advantages; and

(d)

the oral or documentary evidence adduced by any of the interested parties and decrees of Civil Courts.

(5)

Before determining the fair rent in the case of lands referred to in paragraphs 1 and 2 of Schedule II to the Act, the Manager or the Tahsildar, as the case may be, shall issue notice in Form No. 13 to the service-holder or occupant, and the landholder concerned to make representations, if any, which they desire to be considered in fixing the fair rent.

(6)

After considering the representations and with reference to other material before him, the Manager or the Tahsildar, as the case may be, shall determine the fair rent in respect of the land concerned.

(7)

In computing the fair rent in terms of cash, the Manager or the Tahsildar as the case may be, shall fix the cash value of the crop in such manner as he may deem fair and reasonable taking into consideration the Government records containing the season and crop and price reports and also consulting the Director of Statistics, if considered necessary: Provided that where the average market price of any crop has been published by the Collector of the district in the District Gazette under sub-section (1) of section 12 of the Tamil Nadu Cultivating Tenants (Payment of Fair Rent) Act, 1956 (Tamil Nadu Act XXIV of 1956) and such price is in force on the notified date, the Manager or the Tahsildar, as the case may be, shall adopt such price in computing the fair rent in terms of cash,

(8)

(a)

A person aggrieved by any of the orders of the Manager or the Tahsildar, as the case may be, may prefer a revision petition to the District Collector in whose jurisdiction the inam estate is situated.

(b)

Any such petition shall be preferred within thirty days from the date of communication of the order of the Manager or the Tahsildar, as the case may be:

Provided that the District Collector may admit a petition after the period aforesaid, if he is satisfied that the petitioner had sufficient cause for not preferring the petition within the said period.

36.

Enquiry under section 33(11).

(1)

Enquiry under sub-section (11) of section 33 shall be either suo motu or on application from the institution concerned or from other interested persons and shall be conducted by the Revenue Divisional Officer of the division concerned.

(2)

The Revenue Divisional Officer shall issue regarding the date, time, and place of enquiry in Form No. 14 to the service-holder concerned, the applicant and the institution, if the institution is not the applicant and shall also publish the notice.

(3)

The enquiry shall be summary. The Revenue Divisional Officer shall, after hearing the service-holder, the institution and other persons interested and after giving reasonable opportunity to the parties for adducing evidence, give his decision in writing. The decision shall be communicated to the parties concerned.

(4)

If the decision is that there has been failure to render the service by the service-holder, the Revenue Divisional Officer shall notify such failure in Form No. 15 and publish it.

(5)

After the publication of the notification referred to in sub-rule (4), the Revenue Divisional Officer shall give the declaration referred to in sub-section (11) of section 33 in Form No. 16. It shall be published and copies thereof shall be served on the service-holder and on the institution.

37.

Communication of orders determining basic annual sum and total compensation.

- The Director of Settlements shall communicate every order passed under sub-section (1) of sections 34 to every landholder concerned and also to every applicant under sub-section (2) of section 34 in the manner specified below:-

(a)

By sending the order by registered post acknowledgment due; or

(b)

By getting the order served through the Tahsildar or the Manager of inam estate concerned;

(c)

In cases where the order is to be served on any landholder or any applicant, the Director of Settlements shall send the order in duplicate to the Tahsildar of the taluk or the Manager of inam estate concerned, who shall arrange to serve one copy on the person concerned, obtain his acknowledgment on the duplicate and return the duplicate copy to the Director of Settlements within fifteen days from the date of receipt of the order.

38.

Appeal to the Special Appellate Tribunal.

(1)

Every appeal to the Special Appellate Tribunal shall be in Form No. 17 and shall be signed by the appellant or his advocate and presented, by such appellant, advocate or the registered clerk of the advocate at the office of the Registrar, High Court, Madras, during working hours.

(2)

It shall set forth briefly the grounds of objection to the decision appealed against.

(3)

It shall be accompanied by a vakalatnama duly executed if the appellant appears by advocate, by a certified copy of the order appealed against and by as many authenticated copies thereof as there are respondents together with the prescribed process fee:

Provided that in the case of a memorandum of appeal presented under sub-rule (4), the process fee shall be paid within three days after the delay is condoned under sub-rule (5).

(4)

Where an appeal is presented after the period of limitation prescribed therefor in sub-section (1) of section 46, it shall be accompanied by a petition for condoning the delay. The petition shall be supported by an affidavit setting forth the facts on which the appellant relies to satisfy the Court that he had sufficient cause for not preferring the appeal within such period.

(5)

The petition shall, then, be posted for orders before the Judge nominated for the purpose under sub-section (1) of section 46.

(6)

As soon as the appeal is numbered, it shall be placed before the Registrar for orders as to issue of notice and

preparation of the record for the hearing of the appeal.

(7)

The record of the case for the use of the Special Appellate Tribunal shall consist of all material papers on which either party proposes to rely at the hearing of the appeal.

(8)

Unless otherwise ordered by the Judge or the Registrar at the instance of a party, the record shall be translated, if need be, and typed at the office of the Registrar and the charges therefor shall be calculated at the rates prescribed in the rules of the High Court, Appellate Side.

(9)

In case the record is to be prepared at the office of the Registrar, the appellant shall, within two weeks after the receipt of an office memorandum to that effect, pay into the Registrar's office such charges, as may be specified in the said office memorandum.

(10)

The respondent shall, within three weeks from the date of service of the notice of appeal on him, obtain the direction of the Registrar, as to the preparation of the record and shall pay the charges therefor within such time, as may be fixed by the Registrar.

39.

Deposit in District Court of unclaimed and undisbursed amounts deposited with the Tribunal.

(1)

(a)

All amounts deposited in the office of the Tribunal under sub-section (1) of section 36, sub-sections (5) and (7) of section 45 or subsection (2) of section 57 and remaining unpaid and with reference to which no claim has been made within the time specified in sub-section (1) of section 37 or sub-section (4) of section 57, as the case may be, or no application for payment has been made within the time specified in section 50; and

(b)

all amounts deposited as aforesaid and remaining unpaid after the expiry of a period of six months from the date of disposal of the application under section 50 shall be withdrawn by the Tribunal and deposited in The District Court having jurisdiction over the inam estate.

(2)

As soon as any amount is withdrawn by the Tribunal from its personal deposit or other account and deposited in the District Court having jurisdiction under sub-section (1) of section 51, the Tribunal shall publish the fact of such deposit in the District Gazette concerned in Form No. 18. The Tribunal shall also cause a copy of the notification in Form No. 18 to be affixed to the notice board of its office and shall send copies of the notification to the Director of Settlements and the District Judge, the District Collector and the Tahsildar concerned, who shall cause them to be affixed on the notice boards of their respective offices and send certificates of such publication to the Tribunal.

(3)

On the transfer of the amount from the personal deposit or other account of the Tribunal to the account of the District Court, it shall be charged off as expenditure in the account of the Tribunal.

40.

Form in which claim should be made.

- Every person making a claim to, or enforceable against, any amount held in deposit by the District Court shall apply in Form No. 19.

41.

Levy of process fees, award of costs, etc.

- In respect of levy of process fees, award of costs including costs by way of compensation for frivolous or vexatious claims or defence, pleader's fee and witness batta, the District Court shall follow the rules, as applicable to the Tribunal.

42.

Procedure for dealing with amounts transferred to deposit of the District Court.

- The amount transferred to the deposit of the District Court shall be finally dealt with in accordance with the procedure laid down in Rules 51 to 60 in Chapter III of Part I of the Civil Rules of Practice and Circular Orders (Volume II).

43.

Investing in securities money due to a person under disability.

- In cases where the Tribunal does not order the payment of compensation or any other money to any person on behalf of another under disability or to a guardian on behalf of a minor, the Tribunal shall invest the money in any one of the securities specified in the Appendix to Chapter IV of Part II of the Civil Rules of Practice and Circular Orders (Volume I).
44.

Procedure for payment of arrears of rent of landholder.

- The Manager of an existing inam estate in respect of which the rate of rent has been determined before the notified date under the Tamil Nadu Estates Land (Reduction of Rent) Act, 1947 (Tamil Nadu Act XXX of 1947) shall, from time to time and in accordance with the instructions issued by the [Board of Revenue], submit proposals to the Collector of the district in which the existing inam estate or the major portion thereof lies, for the payment to the landholder of the amount due to him from out of the collections made under sub-section (1) of section 56.

45.

Part-payment of arrears of rent to landholder of an existing inam estate by the Collector or Personal Assistant to the Collector.

- The Collector or the Personal Assistant to the Collector may, at any time in a fasli year, pay to the landholder of an existing inam estate in respect of which the rate of rent has been determined before the notified date under the Tamil Nadu Estate Land (Reduction of Rent) Act, 1947 (Tamil Nadu Act XXX of 1947) an amount not exceeding one-half of what remains of the arrears of rent collected up to that time, after deducting there from the aggregate of the following items, namely:-

(i)

collection charges,

(ii)

the amount already paid to the landholder by the Collector, the Personal Assistant to the Collector or the [Board of Revenue]

[The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980) Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.]
in the fasli year, and

(iii)

such portion of the arrears of quit-rent, jodi or other amount, if any, of a like nature due from the landholder to the State Government as is proportionate to the total collections made up to the time of payment by the Collector or the Personal Assistant to the Collector. The Collector or the Personal Assistant to the Collector may do this, as often as he thinks fit in the falsi year.

46.

Further payments of arrears of rent to the landholder of an existing inam estate.

- The Collector may submit to the [Board of Revenue]

[The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980) Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.]

, from time to time, proposals for further payments to be made to the landholder of an existing inam estate in respect of which the rate of rent has been determined before the notified date under the Tamil Nadu Estates Land (Reduction of Rent) Act, 1947 (Tamil Nadu Act XXX of 1947). On receipt of the proposals, the [Board of Revenue]

[The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980) Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.]

shall determine the amount that should be paid to the landholder out of the collections made and shall authorise the Collector to pay it. The amount so ordered to be paid shall not exceed the balance of the collections after deducting therefrom -

(a)

ten per cent, thereof on account of collection charges,

(b)

such portion of the arrears of quit-rent or other amount, if any, of a like nature including cess due from the landholder to the State Government, as is proportionate to the total collections so far made, and

(c)

any amounts already paid.

47.

Final payment of arrears of rent to landholder.

- If all the amounts due from the ryot in an inam estate in respect of which the rate or rent has been determined before the notified date under the Tamil Nadu Estates Land (Reduction of Rent) Act, 1947 (Tamil Nadu Act XXX of 1947) had been collected, the Board of Revenue¹ shall determine the amount payable to the landholder under subsection (1) of section 56 in full settlement of accounts, and the Collector shall arrange to pay the amount so determined, less any payments already made, in accordance with its instructions.

48.

Drawal of emoluments by person employed in the administration of inam estate.

- The persons employed in the administration of an inam estate shall be entitled to receive the same emoluments which they would have drawn, if the inam estate had not been notified until such time, as the Government may frame rules in this regard.

49.

Decision of questions regarding forest.

(1)

The Settlement Officer shall determine questions regarding forests under section 66 either suo motu or on application.

(2)

Any person requiring a decision under section 66 shall apply to the Settlement Officer in Form No. 20.

(3)

Except where the application is on behalf of the Government, it shall be signed and verified by the applicant.

(4)

Every such application shall be restricted to the lands in a single village.

(5)

Every such application shall be presented in person or sent by registered post.

(6)

As many copies of the application as there are respondents with one additional copy for the Manager of the inam estate in which the land is situated, shall be filed with the application.

(7)

On receipt of the application, the Settlement Officer shall fix a date of hearing and issue notice in Form No. 21 to the applicant, the respondents and the Manager of the inam estate. A copy of the application shall be sent along with the notice.

(8)

The Settlement Officer shall make a summary enquiry into the application and give his decision in writing after giving the parties a reasonable opportunity for adducing evidence.

(9)

A copy of the order shall be served on the petitioner and on each of the respondents. A copy shall also be sent to the officer immediately superior to the officer making the enquiry, if the officer making the enquiry is an Assistant Settlement Officer, to the Director of Settlements and to the Manager of the inam estate concerned.

50.

Appeal to Director of Settlements.

(1)

Every appeal against an order of the Settlement Officer under section 66 shall be preferred to the Director of Settlements within thirty days from the date of communication of the order.

(2)

On receipt of the appeal, the Director of Settlements shall fix a date of hearing and issue notices in Form No. 22 to the parties concerned. He shall give them a reasonable opportunity of being heard before passing orders.

51.

Award of costs.

(1)

No costs, by way of process fee, pleader's fee and witness battas shall be allowed in proceedings before the Tribunal

and the Special Appellate Tribunal, in cases where the claim is uncontested or is decreed on admission or compromised.

(2)

Where a claim is contested before a Tribunal or Special Appellate Tribunal, but it allowed in whole or in part, costs shall be allowed to the claimants or appellant in proportion to his success against contest and the contesting party or respondent shall pay such costs to the claimant or appellant.

(3)

In the event of any claim before a Tribunal or Special Appellate Tribunal being dismissed, wholly or in part, costs shall be allowed to the contesting party by respondent, in proportion to his success.

(4)

In case of frivolous or vexatious claims or defences, costs shall be allowed also by way of compensation, as laid down in section 35-A of the Code of Civil Procedure, 1908 (Central Act V of 1908).

(5)

Where costs are awarded by a Tribunal, or Special Appellate Tribunal, the order for costs shall be executable by a Civil Court having jurisdiction over the area with reference to which the Tribunal or the Special Appellate Tribunal gave its decision as if it were a decree passed by such Court.

52.

Procedure to be adopted in the case of proceedings before the Judge of High Court.

- The provisions of Rule 50 and 51 shall, so far as may be, apply to the proceedings before a Judge of the High Court hearing a case under sub-section (2) of section 46.

53.

Mode of entertaining appeal or revision petition, enquiry thereof and grant of stay.

(1)

Every appeal or revision petition under the Act or these Rules shall be accompanied by a duly authenticated copy of the order appealed against or sought to be revised.

(2)

In respect of any order passed under the Act, which is subject to appeal or revision, the appellate or revisional authority, as the case maybe, may suspend the execution of the order, pending its decision on the appeal or in revision.

(3)

Notice of hearing of any appeal or revision, as the case may be, shall be given to the appellant or revision petitioner and the respondent or respondents and to the other persons interest, if any.

(4)

Before passing orders on every appeal or revision petition, the parties concerned shall be given a reasonable opportunity of being heard.

(5)

A copy of the final order in appeal or revision shall be communicated to the appellant or revision petitioner and the respondent or respondents and other persons interested, if any, or the counsel concerned, if any of them is represented by counsel, by registered post, and also to the Manager of the inam estate, and the Assistant Settlement Officer.

Explanation. - For the purposes of this rule, "person interested" means the landholder of the inam estate or part thereof in which the land is situated and includes any other person claiming an interest in the compensation payable for the inam estate or part thereof.

54.

Time barred application, appeal or revision petition to be dismissed.

(1)

Subject to the provisions of the Act and these Rules, every application made and every appeal and revision petition presented to the authorities or officers having jurisdiction under the Act and these Rules, after the period of limitation prescribed therefor in the Act and these Rules, shall be dismissed although limitation has not been set up as a defence.

(2)

No such application made or appeal and revision petition filed shall be admitted after the period of limitation prescribed therefor in the Act and these Rules on the ground that the applicant or appellant or petitioner had sufficient cause for not preferring the application or appeal of petition within such period.

55.

Extent or boundaries of land covered by orders of any authority under Act.

- The extent or boundaries of the land covered by any order passed by any authority or officer in any proceedings under the provisions of this Act shall be, subject to any changes, consequent on the determination of the area and map plotting by the survey authorities.

56.

Transfer of proceedings.

(1)

The proceedings pending before any Tribunal, authority or office may be transferred to any other Tribunal, authority or officer, as the case may be, by the authority, to whom appeals or revision petitions like against the decisions of such Tribunal, authority or officer, or where there is no appellate or revisional authority, by the Government.

(2)

Where a Tribunal is constituted in the place of an existing Tribunal with the same jurisdiction, all the proceedings pending before the existing Tribunal shall stand transferred to the Tribunal so constituted.

57.

Power to issue summons.

- Every Settlement Officer, Assistant Settlement Officer, Settlement Tahsildar, Manager and Assistant Manager of an inam estate, Taluk Officer and Assistant Taluk Officer working under a Manager of an inam estate and officer working under the Settlement Officer or the Assistant Settlement Officer, of and above the rank of Deputy Tahsildar, shall have power to issue summons to any person either for appearance or for production of documents in connection with the enquiries into questions pending before such officer under the Act and such person shall be bound to obey such summons. The form of summons shall be that used by Revenue Courts.

58.

Manner of service and publication of notices and orders under the Act or the rules.

(1)

Any notice or order issued or made under the Act or under these Rules shall be served on the person concerned in the following manner, namely:-

(a)

by delivering or tendering the notice or order to the person concerned or his counsel or authorised agent or some adult member of his family; or

(b)

by sending the notice or order to the person concerned by registered post acknowledgment due; or

(c)

if none of the aforesaid modes of service is practicable, by affixing the notice or order in some conspicuous part of the last known place of residence or business of the person concerned.

(2)

Any notice or order, which is intended for publication for general information shall, in addition to the special modes of publication prescribed in these rules, also be published by affixture in the village chavadi of the village in which the inam estate, is situated and, if there is no village chavadi, in any conspicuous public place in the village, and by announcing the fact of such publication by beat of tom-tom in the village. The village officer shall certify to the place and date of publication and the said date shall be deemed to be the date of communication of the notice or order, as the case may be, to the parties concerned.

59.

Court-fees and process fees.

(1)

The Court-fee payable in respect of the document specified in column (2) of the Table below, under the section in column (1) of the said Table shall be amount specified in the corresponding entry in column (3) thereof:-

Section

Description of documents

Court-fee Rs.P

(1)

(2)

(3)

7(c)

Revision petition to the Board of Revenue1

200

12

Application to the Settlement Officer

075

Appeal to the Tribunal

200

Application to the Tribunal

075

Vakalatnama to the Tribunal

150

34(6)

Appeal to the Board of Revenue

200

46(1)

Memorandum of appeal to the Special Appellate

Tribunal---

1500

(a) If the claim does not exceed Rs. 3,000

(b) If the claim exceeds Rs.3,000, but does not
exceed Rs.10,000

10000

(c) If the claim exceeds Rs. 10,000

50000

Interlocutory application to the Special

Appellate Tribunal

200

Vakalatnama to the Special Appellate Tribunal

300

51(3)

Application to the District Court ---

(a) if the claim does not exceed Rs. 100

500

(b) if the claim exceeds Rs. 100

1000

60

Application to the Settlement Officer

075

Appeal to the Director of Settlements

100

Revision petition to the Board of Revenue

150

Explanation I. - No Court-fee need be paid in the case of appeals filed on behalf of the Government.

Explanation II. - No Court-fee need be paid by the ryots in respect of applications, vakalatnamas, appeal petitions or any other petitions.

(2)

In proceedings before the Tribunal, process fees shall be paid at the rates prescribed for the District Court on processes issued at the instance of parties. In proceedings before the Special Appellate Tribunal, process fees shall be paid in

accordance with the process fees prescribed under section 80 of the Tamil Nadu Court-fees and Suits Valuation Act, 1955 (Tamil Nadu Act XVI of 1955). The rates of process fees leviable for service of notices and summons on respondents and witness and for production of records shall be calculated as follows in cases other than those specified in Rules 41 and 51:-

Rs.P.

(1)

For service of notices of summons on a single person

2.25

(2)

For service of notices or summons on every additional person residing in the same village if applied for at the same time [As amended by G. O. Ms. No. 1376, Revenue, dated the 23rd March 1976.]

1.15

Explanation. - The ryots are also exempted from the payment of process fees and publication charges with regard to their applications or appeals concerning the grant of patta.

60.

Fees to pleaders.

- The following principles shall be adopted in fixing the fees to pleaders for work connected with the proceedings under the Act before the Special Appellate Tribunal and the Tribunal:-

(1)

Fees payable to pleaders for appearance before the Special Appellate Tribunal. - The Special Appellate Tribunal shall, for taxation, fix the fees payable to pleaders, for work connected with the proceedings before it, in the same manner in which the High Court fixes advocate's fee for taxation in appeals against the orders of lower Courts, irrespective of the fact whether it allows cost to any of the contesting parties or not:

Provided that in respect of a batch of connected cases, in which the result is determined by a single case, only one regulation fee shall be fixed.

(2)

Fees payable to pleaders for appearance before the Tribunal. - (a) The Tribunal shall fix the fees payable to pleaders for work connected with the following original proceedings before them so as not to exceed Rs. 500 in ordinary cases and Rs. 1,000 in important cases:-

(i)

Proceedings connected with the apportionment of compensation under section 39.

(ii)

Proceedings connected with the apportionment of interim payments under sub-section (5) of section 45.

(iii)

Proceedings connected with the division of the lands in respect of which a ryotwari patta has to be granted under section 42:

Provided that in respect of a batch of connected cases in which the result is determined by a single case, only one regulation fee shall be fixed.

(b)

(i)

The Tribunal shall fix the fees payable to pleaders for work connected with proceedings under the other provisions of the Act on the following basis, namely:-

(1)

For appearance before the Tribunal and for preparation of * the case-A fixed fee of Rs. 15 for each case in respect of appeals under sub-section (2) of section 12.

(2)

(i)

For appearance before the Tribunal for arguments in respect of appeals under sub-section (2) of section 12- if the time

taken does not exceed 3 hours, a fixed fee of Rs. 15 for each case;

if the time taken exceeds 3 hours, but does not exceed 6 hours, a fixed fee of Rs. 30 for each case;

if the time taken exceed 6 hours a fixed fee of Rs. 50 for each case:

Provided that in respect of a batch of connected cases under sub-section (2) of section 12, in which the result is determined by a single case, the Tribunal shall fix one regulation fee.

(ii)

The Tribunal shall fix fees payable to each of the pleaders, who appear before them in each case, irrespective of the fact whether they allow any costs to any of the contesting parties or not.

(3)

(i)

Fees payable to pleaders for appearance before the Special Appellate Tribunal and for preparation of the case-A fixed fee of Rs. 100 for each case.

(ii)

Fees payable to pleaders for appearance before the Special Appellate Tribunal for arguments-

if the time taken does not exceed three hours, a fixed fee of Rs. 25 for each case;

if the time taken exceeds three hours, but does not exceed six hours, a fixed fee of Rs. 50 for each case;

if the time taken exceeds six hours, a fixed fee of Rs. 75 for each case: Provided that in respect of a batch of connected cases, in which the result is determined by a single case, the Special Appellate Tribunal shall fix one regulation fee.

(iii)

The Special Appellate Tribunal shall fix the fee payable to the pleaders in each case irrespective of the fact whether it allows costs or not.

Appendix

Form No. 1

[See rule 5 (3) (a) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Office of the Manager of Inam Estate

Dated.....

Current No.....

To

Sri.....residing at.....village.....taluk.

Whereas you are reported to be in occupation of the land specified in the Schedule hereunder, which vests in the Government under section 3(b) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

), and whereas you are not personally cultivating the said land and as your occupation is objectionable, you are hereby given notice that if you so desire, you may appear before me/on.....[(date)]

[The date should be at least seven days after the date of service of the notice]

.....at why you should not be dispossessed of the said land under the proviso to section 3(d) of the said Act. (As amended by G.O. Ms. No. 1398, Revenue, dated 9-5-1972).

Schedule

District and Taluk

Name of inam estate

Name of village

Description of the land

Survey number and sub-division number, if

surveyed, or local name, if unsurveyed

Entire extent of the survey number of

sub-division

Occupied extent

Boundaries of land occupied North, South, East
and West

Classification

Name of occupation

Name Of The Occupant

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)

Form No. 2

[See rule 5(3)(b) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Proceedings of the Manager of.....Inam Estate.

No.....

Date.....

Whereas the land specified in the Schedule hereunder has been under the occupation of Sri.....residing at.....;

And Whereas in pursuance of Rule 5(3)(b) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965, I..... Manager of Inam Estate do hereby find that the said occupant is not personally cultivating the said land; and

Whereas I, Manager of ..;..... Inam Estate consider that the occupation is objectionable, the said occupant will be dispossessed of the said land after the lapse of the time limit in rule 5(3)(c).

Schedule 2

District and Taluk

Name of inam estate

Name of village

Description of the land

Survey number and

sub-division number, if surveyed, or local name, if unsurveyed

Entire extent of the

survey number of sub- division

Occupied extent

Boundaries of land

occupied North, South, East and West

Classification

Name of occupation

Name of The Occupant

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)

Form No. 3

[See rule 5(3)(b) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Proceedings of the Manager of :. inam Estate.

No.....Date.....

Whereas the land specified in the Schedule hereunder has been ' under the occupation of residing at ;

And Whereas in pursuance of rule 5(4) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965, I..... Manager of.....Inam Estate do hereby find that the said occupant, namely.....is not personally cultivating the said land;

And Whereas I, Manager of Inam Estate consider that the occupation is not objectionable, the occupant Sri will be allowed to be in occupation of the land, subject to the payment of assessment on the land, until the ryotwari settlement of the land under section 20 or until the land is required by the Government for any purpose, whichever is earlier.

Explanation. - The payment of the assessment shall not confer on the occupant any right of occupancy in respect of the land.

Schedule 3

District and Taluk

Name of inam estate

Name of village

Description of the land

Survey number and sub-division number, if surveyed, or local name, if unsurveyed

Entire extent of the survey number of sub- division

Occupied extent

Boundaries of land occupied North,South,East and West

Classification

Name of occupation

Assessment

Name of The Occupant

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

Rs. P.

Manager.

Form No. 4

[See rule 9(1) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Form of Application Under Section 12(1)/14.

Name of the inam estate:

Name of the landholder/ryot/cultivator/service-holder:

Address of the landholder/ryot/cultivator/ service-holder:

(List of lands in respect of which the landholder/ryot/cultivator/ service-holder claims ryotwari patta)-

1. Serial number:

2. Name of district:

3. Name of taluk:

4. Name of village:

5. Local name, if any, of the land:

6. Survey number and sub-division (if unsurveyed):

7. Extent (in hectares and acres or local measures):

8. Classification, whether wet or dry:

9. Survey numbers of adjacent lands-

North:

South-

East:

West:

10. Provision of law under which the claim is preferred:

11. Summary of the evidence proposed to be adduced:

12. Remarks:

Place:

Date:

Signature of landholder/ryot/cultivator/service-holder.

Note. - A separate form should be used for each village in the inam estate.

Form No. 5

[See rule 9(1) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Notice is hereby given to Sri..... landholder/ryot/cultivator/ service-holder of..... inam estate that the Settlement Tahsildar/ Assistant Settlement Officer/Settlement Officer.....will hold an enquiry into the nature and history of the land mentioned in the Schedule below, in respect of which it is proposed to decide his claim for the grant of ryotwari patta on..... (date) at..... (time) in..... (place) and on subsequent dates at time and place that will be intimated. He may produce any record or make any representation which he may wish to make before the Settlement Tahsildar/Assistant Settlement Officer / Settlement Officer at the enquiry.

Place:

Date:

Settlement Tahsildar.

Assistant Settlement Officer.

Settlement Officer.

Schedule 4

Name of the district

.....

Name of the taluk

.....

Name of the village

.....

Name of the inam estate

.....

Survey number and subdivision

Classification

Extent

Boundaries

Description of service tenure grant in cases
falling under section 14(1)

Name of the claimant

Section of Tamil Nadu Act

26 of 1963

under

which the claim is to be dealt with

(1)

(2)

(3)

(4)

(5)

(6)

(7)

To

Sri.....landholder/ryot/cultivator/service-holder in duplicate through the Manager of inam estate/the Tahsildar of.....for causing service at least fifteen days prior to the date of hearing obtaining acknowledgment and returning the original before the date of hearing. [As amendment by G.O. Ms. No. 1326, Revenue, dated 2-7-1968]

Form No. 6

[See rule 9(5) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Notice is hereby given to all those whom it may concern that in respect of the lands mentioned in the Schedule, it is proposed to decide the claim for the grant of ryotwari patta to the person under section.....of the Tamil Nadu Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

) specified against each land. The Settlement Tahsildar/Assistant Settlement Officer/Settlement Officer will hold an enquiry into the nature and history of the lands on (date) at..... (time) in (place) and on subsequent dates at time and place that will be intimated.

Any person, who has any objection to any of the proposals to grant ryotwari patta may file before the Settlement Tahsildar/Assistant Settlement Officer/ Settlement Officer, a statement of his objections within a week from the date of this notice. The objections should be supported by a summary of evidence and all available documents.

All interested persons are hereby advised to be present at the enquiry, either in person or through an authorised representative, and make their representations.

All such objections and representations and other available records and evidence will be taken into consideration and suitable orders will be passed by the Settlement Tahsildar/Assistant Settlement Officer/Settlement Officer.

In the absence of any such objection or representation, the Settlement Tahsildar/Assistant Settlement Officer/Settlement Officer will conduct such enquiry, as he may deem necessary on the basis of the available records and evidence. In the event of the absence of any interested person, the enquiry will be conducted ex parte. The village headman and the kamam will be present at the enquiry.

Place:

Date:

Settlement Tahsildar.

Assistant Settlement Officer.

Settlement Officer.

Schedule 5

Name of the district

.....

Name of the taluk

.....

Name of the village

.....

Name of the inam estate

.....

Survey number and subdivision

Classification

Extent

Boundaries

Description of service tenure grant in cases

falling under section 14(1)

Name of the claimant

Section of Tamil Nadu Act

26 of 1963

under

which the claim is to be dealt with

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

To

Sri..... names of respondent, if any, (in duplicate) through the Tahsildar of..... Manager of.....inam estate, for causing service at least fifteen days prior to the date of hearing, obtaining acknowledgment and returning the original before the date of hearing.

The Manager..... inam estate/The Tahsildar of..... (in duplicate) for causing publication in.....village at least fifteen days prior to the date of hearing by affixture in the village chavadi or in any conspicuous public place in the village, which should be specified and announcing the fact by beat of tom-tom and for returning the original with the following certificate. [As amended by G. O. Ms. No. 1263, Revenue, dated the 2nd July 1968].

Certificate

Certified that this notice was published by affixing a copy thereof in the village chavadi.....(or, some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tomon and in token therefor the signatures of the villagers have been obtained.

Place:

Date:

[Signature of Village Headman]

[These posts were abolished and now they are called Village Administrative Officer.]

[Signature of the Karnam]

[These posts were abolished and now they are called Village Administrative Officer.]

Form No. 7

[See rule 9(8) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

It is hereby notified for the information of all concerned that under section 12(1)714(1) read with sections 9,10 or 11 of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, Settlement Tahsildar/Assistant Settlement Officer/Settlement Officer 1963 (Tamil Nadu Act

26 of 1963

)..... has decided that in Assistant Settlement Officer/Settlement Officer respect of the lands mentioned in the Schedule, the person specified against each land in column (6) of the Schedule is entitled to ryotwari patta. Any person aggrieved by this decision may appeal to the Tribunal within three months prefer within one month from the date of communication of the decision.

Place:

Date:

Settlement Tahsildar.

Assistant Settlement Officer

Settlement Officer.

Schedule 6

Name of the district

.....

Name of the taluk

.....

Name of the village

.....

Name of the inam estate

.....

Survey number and subdivision

Classification

Extent

Boundaries

Description of service tenure grant in cases
falling under section 14(1)

Name of the claimant

Section of Tamil Nadu Act

26 of 1963

under

which the claim is to be dealt with

(1)

(2)

(3)

(4)

(5)

(6)

(7)

To

The Manager Inam Estate/The Tahsildar of taluk (in duplicate) for causing publication by affixture in the village chavadi or in some conspicuous public place in the village which should be specified, and announcing the fact by beat of tom-tom and for returning the original with the following certificate.

Certificate

Certified that this notice was published by affixing a copy thereof in the village chavadi (or some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tom onand in token thereof the signatures of the villagers have been obtained.

Place:

Date:

[Signature of the Village Headman]

[These posts were abolished and now they are called Village Administrative Officer.]

.

[Signature of the Karnam]

[These posts were abolished and now they are called Village Administrative Officer.]

.

Form No. 8

[See rule 10(1) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Notice is hereby given that an appeal from the decision of the Settlement Officer under section 12(1) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

) has been presentedby and admitted by this Tribunal and has been posted for hearing on..... day of20..... at..... (place).

All persons who have preferred claims before the Settlement Officer/Assistant Settlement Officer/Settlement Tahsildar under section 9, 10 or 11 or filed statements during the enquiry before him are here by called upon to appear before the Tribunal on the date and at the place specified above and file their further statements, if any, in the matter.

A copy of the appeal petition is appended hereto.

To

.....Tribunal

The applicant in duplicate through the Manager, Inam Estate/ Tahsildar of taluk for causing service at least fifteen days prior to the date of hearing, obtaining the acknowledgment and returning the original before the date of hearing.

The Manager of.....Inam Estate/The Tahsildar..... taluk in duplicate for causing publication in the village of at least fifteen days prior to the date of hearing by affixture in the village chavadi or in any conspicuous public place in

the village, which should be specified, announcing the fact by beat of tom-tom and for returning the original with the following certificate:-

Certificate

Certified that the notice was published by affixing a copy thereof in the village chavadi(or some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tom on; and in token thereof signatures of villagers have been obtained.

Signature of Village Headman.

Signature of Kamam.

Form No. 9

[See rule 11 of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Office of the Manager of Inam Estate.

Place:

Date:

To

residing at.....village.....taluk.

Whereas it has been decided by the Settlement Officer/the Tribunal/the Special Appellate Tribunal/the Director of Settlement/ The [Board of Revenue]

[The Board of Revenue was abolished by the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980) Now, Commissioner of Land Administration, vide G. O. Ms. No. 2675, Revenue, dated the 1st December 1980.]

that you are not entitled to a ryotwari patta in respect of the land in your occupation mentioned in the Schedule hereunder, you are hereby required to vacate the land within seven days from the date of service of this notice failing which you will be evicted from the land. Take notice also that the Revenue Inspector firka is hereby authorised to carry out the orders of eviction and to take possessions of the land.

Schedule 7

District and Taluk

Name of inam estate

Name of village

Description of the land

Survey number and sub-division number, if surveyed, or local name, if unsurveyed

Entire extent of the survey number of sub-division

Occupied extent

Boundaries of land occupied North,South,East and West

Classification

Name of occupation

Name of The Occupant

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

Manager.

Copy to the Revenue Inspector firka for.....eviction and report.

Form No. 10

[See rule 20(4)(c) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Notice is hereby given that the undersigned has provisionally fixed, as specified in the order attached, the appropriate rate of assessment in respect of the lands referred to in that order under the Explanation to section 26 of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

) and the rules framed thereunder.

(2)

The finalisation of the provisional assessment will be taken up by the undersigned on..... (date) at..... (time) in..... (place).

(3)

Any person interested may file before the undersigned at the said time and place his representation in regard to the provisional assessment and adduce oral or documentary evidences.

(4)

If any person interested does not appear before the undersigned and adduce evidence, no further opportunity will be given to him, and the matter will be disposed of on merits.

Place:

Date:

Assistant Settlement Officer.

The Manager of..... Inam Estate/Tahsildar oftaluk (in duplicate) for causing publication in..... village by affixture in the village chavadi or in some conspicuous public place in the village, which should be specified and announcing the fact by beat of tom-tom; and for returning the original with the following certificate:-

Certificate

Certified that this notice was published by affixing a copy thereof in the village chavadi..... (or some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tom on; and in token thereof signatures of villagers have been obtained.

Place:

Date:

[Signature of the Village Headman]

[These posts were abolished and now they are called Village Administrative Officer.]

.

[Signature of Karnam]

[These posts were abolished and now they are called Village Administrative Officer.]

.

Form No. 11

[See rule 30(2) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Statement Showing the Particulars of Ryoti in the Occupation of Ryots in the Inam Estate held by..... (Name of Institution) in..... Taluk in..... District inFasli

Patta number and name of the registered holder

Serial number of paimash number

Extent

Classification

Rate of rent

Amount of rent at the rate in column (5)

Extent, if any, left waste in the fasli

Remission, if any, the ryot is entitled to get on each land by virtue of contract or custom

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

HA.

HA.

Form No. 12

[See rule 34 of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Form of Option to be Exercised by the Service-Holder under section 33(2) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

).

1. Name and address of the service-holder.

2. Name and address of the institution.

3. Nature of service attached.

4. (i) Whether willing to continue to render the service; or

(ii)

Whether willing to discharge the service on payment of the amount as required in section 33(9) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

).

5. Particulars of land for which ryotwari patta has been granted under section 9 to the person specified column (1).

Name of the District

Name of the taluk

Name of the Inam estate

Survey number

Classification

Extent

Remarks

Date of grant of ryotwari patta

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Place:

Date:

Signature of the service-holder.

Form No. 13

[See rule 35(5) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Current No.

Office of the Manager of.....

Date.....

To

Sri.....(name of service-holder),..... village..... taluk..... The Manager.....(name of institution),..... village,..... taluk.

Notice is hereby given that the determination of fair rent in respect of the lands mentioned in the Schedule below will be taken by the undersigned on(date) at(time) in(place).

2. You may file before the undersigned at the said time and place your representation in regard to the determination of

fair rent.

3. If you do not avail yourself of this opportunity, the matter will be disposed of on merits.

Place:

Date:

Manager.

Schedule 8

Name of District

Name of the taluk

Name of the Inam estate

Survey number

Classification

Extent

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

HA.

Form No. 14

[See rule 36(2) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

To

Sri.....(name of service-holder),..... village..... taluk.

Whereas you Sri..... are liable to render service as..... (nature of service) to the (name of the institution) in consideration of the investment and interim payment payable to you under section 33(7) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

);

And Whereas you have been granted a ryotwari patta under section 9 of the said Act in respect of the lands mentioned in the Schedule;

And Whereas it has now been brought to notice that you have failed to render the service to the said institution with effect from(date), you are hereby given notice that an enquiry will be conducted by the undersignedon (date) at....., (time) ...in..... (place) and you are hereby required to appear before me for the aforesaid enquiry and make your representations, if any.

Revenue Divisional Officer.

Schedule 9

Name of District

Name of the taluk

Name of the Inam estate

Survey number

Classification

Extent

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

HA.

Rs.P

Copy to the Manager.....(name of the institution)

To

The Manager of..... Inam Estate/the Tahsildar of taluk (in duplicate) for causing publication in village by affixture in the village chavadi or in some conspicuous public place in the village, which should be specified, and announcing the fact by beat tom-tom; and for returning the original with the following certificates.

Certificate

Certified that this notice was published by affixing a copy thereof in the village chavadi (or some conspicuous, place to be mentioned) and by announcing the fact by beat of tom-tom on..... ; and in token thereof signatures of villagers have been obtained.

Place:

Date:

[Signature of the Village Headman]

[These posts were abolished and now they are called Village Administrative Officer.]

.

[Signature of Karnam]

[These posts were abolished and now they are called Village Administrative Officer.]

.

[Form No. 15]

[See rule 36(4) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

To

Sri.....(name of service-holder), village, taluk.

Whereas you Sri are liable to render service as (nature of service) to the (name of the institution) in consideration of the investment and interim payment payable to you under section 33(7) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act 26 of 1963

);

And Whereas you have been granted a ryotwari patta under section 9 of the said Act in respect of the lands mentioned in the Schedule;

And Whereas after due enquiry, it is found that you have failed to render the service to the said institution on and from (date), I hereby notify your failure to render the service as required under section 33(11) of the said Act.

Revenue Divisional Officer.

Schedule 10

Name of District

Name of the taluk

Name of the Inam estate

Survey number

Classification

Extent

Assessment

(1)

(2)

(3)

(4)

(5)

(6)

(7)

HA.

Rs.P

Copy to the Manager.....(name of the institution)

To

The Manager ofInam Estate/the Tahsildar oftaluk (in duplicate) for causing publication in.....village by affixture in the village chavadi or in some conspicuous public place in the village, which should be specified, and announcing the fact by beat of tom-tom; and for returning the original with the following certificate:-

Certificate

Certified that this notice was published by affixing a copy thereof in the village chavadi (or some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tom on; and in token thereof signatures of villagers have been obtained.

Place:

Date:

[Signature of the Village Headman]

[These posts were abolished and now they are called Village Administrative Officer.]

[Signature of Karnam]

[These posts were abolished and now they are called Village Administrative Officer.]

Form No. 16

[See rule 36(5) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

To

Sri.....(name of service-holder),..... village,taluk.

Whereas you are liable to render service as..... (nature of service) to the.....(name of the institution) in consideration of the investment and interim payment payable to you under section 33(7) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

);

And Whereas you have been granted a ryotwari patta under section 9 of the said Act in respect of the lands mentioned in the Schedule;

And Whereas, after due enquiry, it is found that you have failed to render the service to the said institution on and from..... (date), I hereby declare under section 33(11) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

) that the investment and interim payments payable under section 33(7) of the Act in respect of the period subsequent to the failure and the lands mentioned in the Schedule shall be the absolute property of the said institution.

Revenue Divisional Officer.

Schedule 11

Name of District

Name of the taluk

Name of the Inam estate

Survey number

Classification

Extent

Assessment

(1)

(2)

(3)

(4)

(5)

(6)

(7)

HA.

Rs.P

Copy to the Manager.....(name of the institution)

To

The Manager of..... Inam Estate /the Tahsildar of..... taluk (in duplicate) for causing publication in village by affixture in..... the village chavadi or in some conspicuous public place in the village, which should be specified, and announcing the fact by beat tom-tom; and for returning the original with the following certificate:-

Certificate

Certified that this notice was published by affixing a copy thereof in the village chavadi(or some conspicuous place to be mentioned) and by announcing the fact by beat of tom-tom on and in token thereof signatures of villagers have been obtained.

Place:

Date:

[Signature of the Village Headman]

[These posts were abolished and now they are called Village Administrative Officer.]

.

[Signature of Karnam]

[These posts were abolished and now they are called Village Administrative Officer.]

.

Form No. 17

[See rule 38(1) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Before The Special Appellate Tribunal under the Tamil Nadu Inam Estates (Abolition and Conversion Into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

).

Appeal No.....of 20..

A.B. .. Appellant

C.D. and others .. Respondents.

The above named appeals to the Special Appellate Tribunal from the decision of the Inam Estates Abolition Tribunal No., dated..... and in Application/Petition Noof 20..... and sets forth the following grounds of objection to the said decision appealed from viz. (Here set out the grounds).

Form No. 18

[See rule 39(2) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Particulars of Amounts Deposited in the District Court ofby the Tribunal under Section 51(1) of The Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1963 (Tamil Nadu Act

26 of 1963

)

1.

Name of the inam estate Name of the taluk Name
of the district

2.

Nature of the amount deposited; whether
compensation or interim payment or rent collections.

3.

Amount deposited.

Rs. P.

4.

Date of original deposit in the Tribunal.

5.

(a) Whether unclaimed
or undisbursed.

(b) If undisbursed

- (i) number and date of the order, in which the payment was ordered by the Tribunal or the Special Appellate Tribunal;
- (ii) Name of the person, in whose favour the order for payment was made;
- (iii) Amount ordered for payment.

Rs. P.

6.

Remarks.

Place:

Date:

Tribunal.

Form No. 19

[See rule 40 of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

1.

Name of the applicant and full address.

2.

(a) Name of the Inam

Estate, to which the claim relates;

(b) The number and

date of the Government Order in which it was notified; and

(c) The number and date of the notification and

the date and pages of the Fort St. George Gazette in which it has been published.

3.

Name of the taluk and the district, in which the inam estate is situated.

4.

Date and page of the District Gazette in which the notification regarding deposit of the amount with the District Court was published.

5.

(a) Nature of the amount in deposit --- whether compensation or interim payment or rent collections.

(b) Whether the application is in respect of unclaimed amount or undisbursed amount.

6.

Nature of interest held (i.e.) as a landholder or sharer or maintenance holder or creditor, etc.

7.

Details of claim and the provision of law, under which the applicant is entitled to the amount held in deposit.

8.

The amount claimed out of the total amount deposited in the District Court by the Tribunal.

9.

Reasons for the delay in preferring the application, if any.

10.

In case of

undisbursed amounts, particulars of orders passed by the

Tribunal or the Special Appellate Tribunal in respect of which an application for payment under section 51 should have been preferred.

(a) Number and date

of the order of the Tribunal or Special Appellate Tribunal.

(b) Nature of the

amount (compensation or interim payment or rent collections).

(c) Amount ordered

for payment.

(d) Name of the

person in whose favour an order of payment was passed.

(e) Remarks.

11.

Is the original or a certified copy of the order of the Tribunal or Special Appellate Tribunal enclosed.

12.

Summary of the evidence proposed to be adduced in support of the claim.

13.

Any other information relevant to this application.

Place:

Date:

Signature of the applicant.

Form No. 20

[See rule 49(2) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Form of Application Under Section 66 of The Tamil Nadu Inam Estates (Abolition and Conversion Into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

)

1. Name of the applicant and his address.

2. Name of the inam estate, in which the land or forest in dispute lies.

3. Name of the taluk.

4. Name of the district.

5. Local name, if any, of the land or forest in dispute.

6. Extent.

7. Nature of the dispute and relief sought.

Place:

Date:

Signature of the applicant.

Form No. 21

[See rule 49(7) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Before the Settlement Officer

Name and address of applicant.....

Name and address of respondent.....

Application, dated.....

Take notice that the applicant mentioned above has applied to me for a decision under section 66 of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

), in respect of the land mentioned in the copy of the application, which is sent herewith. The application is posted for hearing on.... (date) at (time) in (place). You are hereby required to appear before in person or by pleader, at the time

and place aforesaid, failing which orders are liable to be passed ex parte.

Place:

Date:

Settlement Officer.

Form No. 22

[See rule 50(2) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1965]

Before the Director of Settlements

Name and Address of Appellant.

Name of the respondent.

Notice is hereby given that an appeal from the decision of the Settlement Officer under section 66 of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

), has been presented by..... and admitted by the Director of Settlements and has been posted for hearing on..... (date) at..... (time) in..... (place).

All persons who have applied to the Settlement Officer under section 66 of the said Act or filed statements during the enquiry before him are hereby called upon to appear before the Director of Settlements at the time and place specified above and file their further statement, if any, in the matter.

Place:

Date:

Director of Settlements.

(Seal)

Related AI tags, queries and research notes

Translation